311

1951

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FAR EASTERN DEPARTMENT

JAPAN

115

F J 1022/452

FROM Chancery, British Embassy, Tokyo.

No. 285/1951

Dated 21st. May, 1951

Received in Registry 29th. May, 1951

Comments on F.O. memo "Sovereignty over the [redacted] HABOMAI islands"

References

FJ 1022/365

FJ 1013/5.

(Print)

(How disposed of)

(Action completed) 1/6

(Index) 4/7/51

MINUTES

We should be grateful for the urgent obs. of—

F.O.R.D.

W.M. Caldwell

30/5.

On the one point at issue — on which side of Shikotan to draw the de jure boundary of Japan in the Peace Treaty — Tokyo does not give definite guidance (see para 11, reference to F.O. memorandum para 15). If, for the reasons given at the end of para 11, it is decided to give Shikotan de jure to Japan this could presumably be justified by the facts given in para 6. Shikotan can be presumed to have been associated with the Habomai rather than the Kurile chain prior to 1869. It was certainly so associated from 1869 to 1884, and the change in 1884 could, I imagine, be dismissed as an administrative convenience concerned with the Ainu population — a convenience which

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If Japan Department inclined to take this view however it would be comforting to have an assurance that it is legally tenable.

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Under the present draft of the treaty this will be left to later decision since Soviet merely ~~do~~ renounces all rights to the Kuriles which are not further defined.

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F
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United Kingdom Liaison Mission in Japan,
British Embassy,
TOKYO.

CONFIDENTIAL
285/19/51

21st May, 1951.

FJ 1022/452

Dear Department,

The following are our comments on the memorandum "Sovereignty over the Habomai Islands" enclosed in your letter FJ.1022/365 of the 10th May.

2. Neither the Habomai Islands nor Shikotan have been mentioned individually by name in any international document. It seems indeed as if their very insignificance in the past kept them from being a specific bone of international contention and if the Soviet Union had not succeeded in occupying them in 1945 it seems doubtful whether it would have thought that there were arguable grounds for claiming these islands within the definition, in the Yalta (Livadia) Agreement, of "Kuril Islands". It is indeed because of the inexact definition of what was meant in the Livadia Agreement by the term "Kuril Islands" that argument, on legal grounds, can now arise.

3. Etorofu and Kunashiri (the Southern Kuriles), as well as the Habomai Islands (including Shikotan) have never formed part of internationally-defined Russian territory. Far back in history the Hokkaido as well as the Kuriles, Habomais and Shikotan were inhabited by aborigines and formed a frontier no-man's land between the expanding central governments of Japan and Russia. Though a few Russians had by 1766 penetrated as far south as Etorofu, it was Japanese rather than Russian settlers who, in the late 18th and early 19th centuries, first established a predominant influence in the Southern Kuriles and Habomais. There is, therefore, on historical grounds a prima facie Japanese rather than a Soviet claim to Kunashiri, Etorofu and the Habomais including Shikotan. The only international document that is in any way relevant in this connection, namely the Russo-Japanese Treaty of 1855, recognised an international boundary between Etorofu and Uruppu. The Habomais and Shikotan were not mentioned in the Treaty because there was at that time no question of their being claimed as part of the Russian Kuriles.

4. As regards population, the original aborigines have disappeared from the Habomais and such Japanese residents as there may have been up to 1945 have, as far as we know, been expelled by the Soviet authorities. In any case, the Habomais and Shikotan were mainly temporary haunts for seasonal fishing expeditions rather than places of permanent residence. All that can be said, therefore, is that there is probably certain nostalgia among the surviving former Japanese residents in the Kuriles and Habomais now in Hokkaido or elsewhere, to return to their former dwelling places. [Note. According to Japanese Government sources in 1940 the population of the Southern Kuriles consisted of 2,201 households, or 11,137 persons. About 20,000 fishermen spread through the Kuriles in the fishing season. In 1945 the Habomai Island group had 700 households and a population of 4,372. Shikotan had 187 households and 820 persons. All except 40 Ainu were Japanese]. There is

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Foreign Office,
LONDON S.W.1.

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a strong wish born of long tradition for the Japanese in the Hokkaido to be able to return to their regular fishing grounds in and around the Kuriles and the Habomais. There can be no nostalgia among Soviet citizens to return to the Southern Kuriles or the Habomais as no Russians have ever inhabited them. They are now occupied or at least controlled, as far as we know, by units of the Soviet armed forces who cannot be termed colonists or residents.

5. On the other hand, as far as geography, geology and traditional usage are concerned it does not seem possible to put forward any logical case for Kunashiri and Etorofu to be considered as other than included in the term, wherever used, "Kurile Islands". Geologically the whole string of Kurile Islands from Kunashiri to Shumushu are part of the same volcanic formation. Geographically they form one entity. Usage has always grouped them together except inasmuch as they were divided [redacted] by the Russo-Japanese Treaty of 1855.

6. The question next arises whether the Habomai Islands including Shikotan form part of the Kuriles, or whether they have ever been so considered. As far as can be ascertained the facts are as follows. Prior to the Meiji Restoration (1868) the Southern Kuriles formed a part of the administrative district known as Eastern Yezo which united what is now Eastern Hokkaido, the Southern Kuriles and the Habomai group, including Shikotan. In 1869 the Habomais and Shikotan were incorporated together in Hanasaki-gun (county) in Nemuro Kuni (province), /In 1884,/ by which time Japan had, by the Russo-Japanese Treaty of 1875, acquired the whole Kurile chain, the Japanese undertook a transfer of Ainu from one territory to another. We believe, but have not been able to confirm, that this transfer of Ainu was from the Northern Kuriles to Shikotan. From that date, however, until 1945 the Habomai Island group, together with a small portion of Nemuro peninsula, were treated as one administrative entity, namely Hanasaki-gun, which in turn came under the administration of Nemuro Province. Shikotan on the other hand became and remained a part of Chishima province, under the jurisdiction of which were included all the Kurile Islands proper.

7. The two documents we have used to confirm the above are:-

(i) A large scale Japanese map with detailed legend and boundaries printed in 1936;

(ii) A Japanese Government directory of towns and villages printed in 1926.

There is no discrepancy between these documents. The attached diagram may make the administrative divisions clear.

8. As regards the geographical and geological association of the Habomais and Shikotan with the term "Kurile Islands" there seem to be some doubts. We are informed that the comparatively low-lying Habomais present an appearance quite different from the Kuriles proper but at any rate in some of the works we have consulted, in particular TREWARTHA, "Japan, a physical, cultural and regional geography", University of Wisconsin Press 1945, they seem (though it is not stated explicitly) to be included as one geological entity with the Kuriles. In some 19th century historical travel books Shikotan, at least, seems to have been considered as one of the Kuriles. It seems in fact as if the approximately six smaller islands of the Habomai group have been traditionally regarded as one entity and

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and that Shikotan has been variously considered as a separate entity or else, according to convention or convenience included in the general definition of the Kuriles, or else sometimes included with the Habomais.

9. There is one final point for consideration. An international boundary in the tricky and prevalently fog-bound narrows between the Hokkaido on the one hand, and Kunashiri (and possibly the nearest Habomai rock) on the other is, (apart from military-political considerations) undesirable on grounds of navigational convenience. As was recognised in the Treaty of 1855, a boundary in the clearer, wider and deeper channel between Etorofu and Uruppu Islands would be much more satisfactory.

10. However as the object of the Soviet Government is presumably to retain occupation of the whole Habomai group for strategical reasons and in order to maintain a constant threat against Japan, it is evident that they will not relinquish the Habomais or Shikotan Island , except as a result of some change of policy which cannot at the moment be foreseen. These territories also represent a bargaining counter which might be used by the Soviets for attaining much greater concessions elsewhere, though this seems at present unlikely. We understand, however, that Communist propaganda in the Hokkaido has from time to time thrown out hints of the "return of the Kuriles" being assured when Japan becomes truly "democratized".

11. The question of whether Shikotan Island should, under the terms of the Livadia agreement, be included in the term "Kurile Islands" is an open one. If the phrase used had been "the Kurile Islands shall be restored to the Soviet Union" instead of "handed over" a convincing argument might have been made for its retention by the Japanese. As far as its inclusion in the Livadia Agreement's definition is concerned there are arguments both for and against. We doubt if the remainder of the Habomai group could properly be included in the term "Kurile Islands". We agree, therefore, with paragraphs 12-14 of the memorandum and have an open mind on paragraph 15, though, from the point of view of practical advantage at this stage, it would probably be better not to give the Japanese the impression that it is His Majesty's Government who advocate the surrender of Shikotan. We should gain no credit from the Soviet Government whichever line we take.

12. We should remind you in this connection that Mr. Dulles publicly stated in Washington earlier this year that the "Habomai Islands" (though he did not mention Shikotan separately) should not be regarded as part of the Kurile Islands. As reported in paragraph 3 of Tokyo telegram No. 21 saving of the 6th March, this statement was eagerly aclsimed in Japan.

FJ 1013/5

13. In conclusion, we should acknowledge the most helpful cooperation of the Diplomatic Section with whom we have had a frank and useful discussion on this subject and whose unofficial views at the working level coincide with the above.

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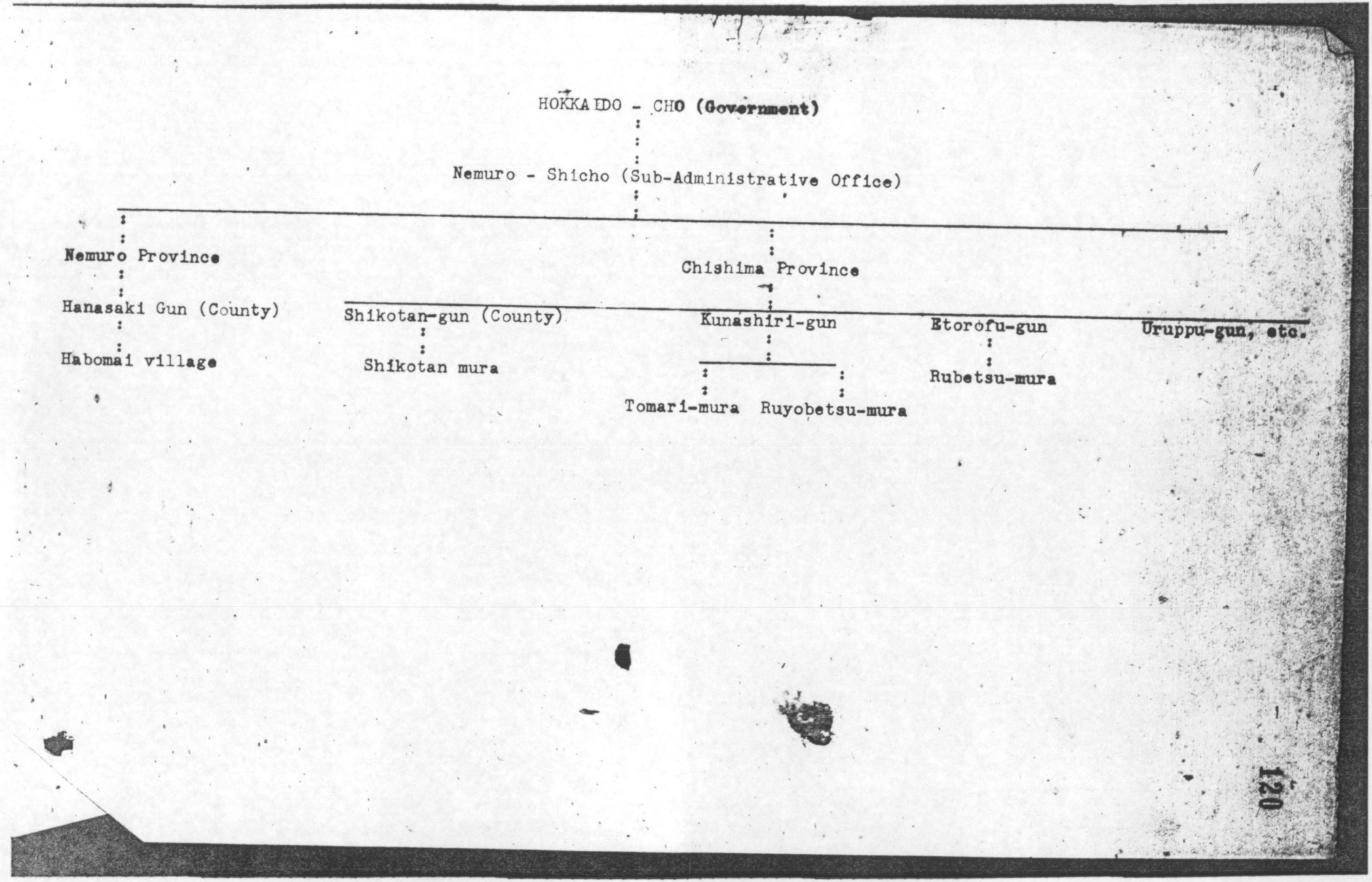
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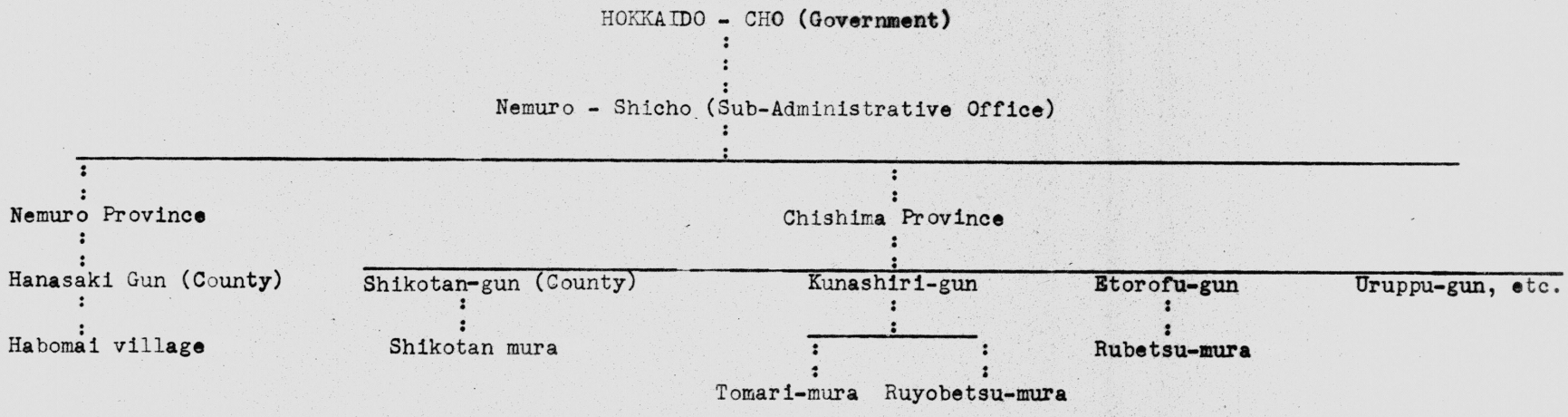
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HOKKAIDO - CHO (Government)
Nemuro - Shicho (Sub-Administrative Office)
Nemuro Province
Hanasaki Gun (County)
Habomai village
Chishima Province
Shikotan-gun (County)
Shikotan mura
Kunashiri-gun
Tomari-mura
Ruyobetsu-mura
Etorofu-gun
Rubetsu-mura
Uruppu-gun, etc.



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